

Regulatory Affairs Branch

EHS Circular Letter 2026-16

To: Local Directors of Health

From: Jenna Nicol, Section Chief, Environmental Health Section

Date: August 31, 2026

Subject: Revisions to the PHC sections 19-13-B100a and 19-13-B103 and supporting Technical Standards for Subsurface Sewage Disposal Systems: effective September 1, 2026

SUMMARY:

Public Health Code (PHC) Sections 19-13-B100a and 19-13-B103a to 19-13-B103h, inclusive, and the supporting Technical Standards for subsurface sewage disposal systems were revised to comply with Section 22a-430(g) of the Connecticut General Statutes, which transfers authority from the Department of Energy and Environmental Protection (DEEP) to the Department of Public Health (DPH) for certain sewage systems with flows up to 10,000 gallons per day and community sewage disposal systems.

The revisions include clarifying existing regulatory language, requiring nitrogen assessments for specified building conversions and new and repair subsurface sewage disposal systems within the nitrogen assessment threshold, granting local health departments the discretion to require professional engineering oversight for subsurface sewage disposal systems under construction, and streamlining application and site investigation procedures. New sections codify established processes for water treatment wastewater discharges delegated by DEEP in 2017 and establish certification standards and a grandfathering pathway for subsurface sewage enforcement officers as required by Public Act 26-142.

DPH's policies and procedures allow the revised regulations to be implemented and enforced while it moves through the formal review and approval process. The effective date of the revised regulations and Technical Standards is September 1, 2026.

A significant change in the proposed regulation revisions involves the transfer of authority for central sewage disposal system approval from DPH to local health departments. The revised Technical Standards include guidance for reviewing and approving central systems by local health departments.

The Technical Standards were also updated to align with the revised regulatory requirements, ensuring consistency between the regulations and the technical criteria for the design, construction and installation of subsurface sewage disposal systems.

Please note, this release supersedes all other previously released versions of the regulations, Technical Standards, and Summary of Revisions to reflect recent comments and feedback.

Contact e-mail: DPH.EnvironEng@ct.gov or Amanda.Clark@ct.gov with any questions, comments, and written feedback for the Technical Standards or associated forms.

Attached:

Revised

- [PHC Sections 19-13-B100a and 19-13-B103a to 19-13-B103h](#) (link)
- Final 2026 Technical Standards for Subsurface Sewage Disposal Systems
- Technical Standards Summary of Changes

New DPH Submission: Application Forms

- Small Community Sewage Disposal Systems
- Sewage Holding Tanks
- Composting Toilets

Revised DPH Submission: Application Forms

- Off-Site Sewage Disposal Systems (Easements)
- Well Separation Distance Exceptions

Local Health Forms

- Approval to Construct a Subsurface Sewage Disposal System
- Site Investigation
- Final Inspection Report
- Permit to Discharge
- New: Water Treatment Wastewater